

Vendor Agreement -- Cloudy SaaS Inc

This Vendor Agreement ("Contract") sets out the commercial and legal terms under which Cloudy SaaS Inc provides its services to Customer.

1. Scope of Services. Vendor will provide the software and support services described in the applicable Order Form.
2. Breach Notification. Vendor will notify Customer within 30 of a confirmed breach involving Customer data.
3. Liability. Vendor's liability under this Contract is capped at 12 months of fees paid by Customer in the twelve months preceding the claim.
4. Subprocessors. Vendor's current subprocessor list includes AWS us-east-1, providing cloud hosting infrastructure, located in the USA, updated from time to time with notice to Customer.
5. Payment Terms. Fees are invoiced annually in advance, net 30 days.